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25-CIV-05681
LINE 2

MARY URBAN, INDIVIDUALLY, AND ON BEHALF OF AGGRIEVED EMPLOYEES PURSUANT
TO THE CALIFORNIA PRIVATE ATTORNEYS GENERAL ACT VS FAMILIAR SURROUNDINGS
HOME CARE LLC

MARY URBAN
FAMILIAR SURROUNDINGS HOME CARE LLC

SAGE S. STONE
AMBER J. BABIN

DEFENDANT: FAMILIAR SURROUNDINGS HOME CARE LLC'S MOTION TO COMPEL ARBITRATION AND TO STAY

TENTATIVE RULING:

Defendant Familiar Surroundings Home Care LLC's ("Defendant") Motion to Compel Arbitration of Plaintiff's claims is DENIED.

Objections to Evidence

Plaintiff's objections to the Supplemental Declaration of Laura Wentling are OVERRULED.

On July 2, 2026, Plaintiff submitted Objections to the Supplemental Declaration of Laura Wentling In Support of Defendant's Reply Brief. However, according to the Court's docket, Defendant's Reply Brief and Ms. Wentling's supplemental declaration were not filed until July 14, 2026.

This non-chronological filing appears to have caused issues, because the excerpts to which Plaintiff objects are not located at the paragraphs or line numbers that Plaintiff cites. For the first through sixth objections, the text that Plaintiff objects to does not appear in the Supplemental Wentling Declaration, and those objections are overruled on those grounds.

Turning to the substance of the remaining objections, Plaintiff first objects to each excerpt on the grounds that Defendant improperly submits new evidence on reply without having provided an explanation for inclusion of the new information.

While arguably Defendant should have easily anticipated the FAA and unconscionability arguments, to which the supplemental declaration responds, and the court seriously considered sustaining Plaintiff's objection, the Court finds that Defendant has provided an explanation, and Defendant's reply evidence in the form of the Supplemental Wentling Declaration is admitted. The Agreement, which was submitted as part of both parties' motions, references the use of the telephony system for recordkeeping; and in response to Plaintiff's argument that the FAA does not apply, Ms. Wentling's Supplemental Declaration clarifies that the telephony system used is a national system. (See Supp. Wentling Dec, ¶¶ 13-16.) That is not as true as to Ms. Wentling's explanations of the payroll and onboarding systems. The Court will certainly give the Plaintiff ample opportunity to orally rebut this evidence at the hearing if Plaintiff chooses.

The remaining excerpts address Plaintiff having signed a prior employment agreement, which both parties admitted in their motions, and Plaintiff's language preferences, which Defendant could not have as easily anticipated Plaintiff would raise as a ground for unconscionability. This evidence was therefore properly presented as rebuttal evidence on reply.

Plaintiff's ninth through fifteenth objections are overruled on the grounds above.

Plaintiff's remaining objections raise additional grounds. Plaintiff argues that Ms. Wentling's statements about Plaintiff having previously worked for Defendant and about the language in which Plaintiff communicated at work lack foundation and are speculative. Ms. Wentling is Defendant's Managing Member and CEO, and she states in her declaration that as CEO, she is familiar with Defendant's caregiver/personal attendant operations. Ms. Wentling states that in the ordinary course of her duties she has access to Defendant's records, that such records are maintained in the regular course of business, and that she is familiar with and has reviewed Plaintiff's specific records. This is sufficient to lay a foundation for Ms. Wentling's personal knowledge of her statements. Additionally, while Plaintiff argues that Plaintiff presumably communicated with dozens or hundreds of people at Defendant's company throughout her employment, the relevant parties are those who presented Plaintiff with her onboarding documents or supervised her. Ms. Wentling has established that in her role, she would have knowledge of whether Plaintiff communicated a difficulty with the English language to those people. The seventh and eighth objections are overruled on these grounds.

Motion to Compel Arbitration

Defendant has met its initial burden and proved by a preponderance of evidence that an arbitration agreement was entered into by the parties and the dispute is covered by the agreement. (Knight, Cal. Prac. Guide: Alt. Disp. Res. (Rutter, Dec. 2025 Update) ¶ 5:320.)

Ms. Wentling provides a copy of a "Personal Caregiver Employment Agreement" ("Agreement") which contains an arbitration provision covering Plaintiff's claims. The Agreement contains Plaintiff's initials on each page and after the arbitration provision and her signature at the bottom. Plaintiff's argument that she has no memory of reading, receiving, or signing an arbitration provision is not well taken where her declaration also states that she was required to place her initials at the bottom of the arbitration provision and was not told that by placing her initials she was giving up certain rights, thereby impliedly admitting that she placed her initials and that she (at least) received the provision.

But Defendant has failed to demonstrate that the FAA applies to the Agreement. While Defendant could have easily stated in the Agreement that it was subject to the FAA, the Agreement does not so state; therefore Defendant has the burden of demonstrating that the Agreement was a "contract evidencing a transaction involving commerce." (9 U.S.C. § 2.)

Defendant argues that Plaintiff was required to use an "electronic 'telephony' system to record time, location, and daily work activities," and that the platform that hosts that system is a "national third-party cloud-based platform." (Reply Brief, pp. 4:25-5:8.) Defendant further argues that timekeeping through this system was central to Plaintiff's employment relationship. (Id. at p. 5:1-5.) Defendant also argues that Plaintiff's timekeeping data was imported into a national payroll provider, and that Plaintiff completed mandatory online training through an out-of-state provider. (Id. at p. 5:9-16.) But, Defendant impliedly concedes that neither the Plaintiff's duties nor work involved interstate commerce in any meaningful way, which is the focus for courts considering whether the FAA applies to a contract. (See *Hoover v. American Income Life Ins. Co.* (2012) 206 Cal.App.4th 1193, 1207–1208; *Carbajal v. CWPSC, Inc.* (2016) 245 Cal. App. 4th 227, 240.)

The Court has been unable to find (and the Defendant has failed to cite) any cases holding that an employee's periodic use of national human resources related technology for tasks like payroll (when the

employee performs her job solely intrastate and doesn't use any interstate tools in the performance of her actual job duties) is sufficient to establish applicability of the FAA. While it is plausible at some point a California Court of Appeal (or other court) will interpret the application of FAA that expansively, until one does, California law and policy must prevail.

This Court therefore follows the Second District Court of Appeal in *Villalobos v. Maersk, Inc.* (2025) 114 Cal.App.5th 1170 and finds that because the FAA does not apply, California law applies, and Plaintiff's PAGA claim cannot be split or compelled to arbitration. (*Villalobos* at 1197-1198.) As the Court is not compelling arbitration, there is no asserted basis for a stay.

The Court notes that the parties extensively brief the issue of unconscionability. The Court need not reach that issue in light of the analysis above.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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